



SPONSOR: Rep. Morrison & Sen. Sturgeon
Reps. Burns, Gorman; Sens. Sokola, Seigfried

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 251

AN ACT TO AMEND TITLE 9 OF THE DELAWARE CODE RELATING TO THE NEW CASTLE COUNTY COUNCIL.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 1141, Title 9 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1141. Number and term.

(e) Notwithstanding any law to the contrary, the terms of the members in councilmanic districts 7 through 12 elected in the 2028 general election and any special election held after the 2028 general election but prior to the 2032 general election terminate on the first Wednesday in November following the 2032 general election.

(f) Notwithstanding any law to the contrary, effective with the 2032 general election and all subsequent elections, the County Council shall consist of 13 members. Each of these members must be elected from council districts.

(g) Notwithstanding any law to the contrary, for the 2032 general election, the County Council shall reapportion the county into 13 council districts. This apportionment must be conducted in the manner specified in § 1165 of this title using the 2030 United States Decennial Census. This reapportionment must be completed on or before January 1, 2032. Notwithstanding any law to the contrary, the terms of the members elected in the 2032 general election and any special election held following the 2032 general election to fill a vacancy in a seat the 2032 general election must terminate as follows:

(1) For members elected from districts 1 through 6, on the first Wednesday in November following the 2034 general election, and every 4 years thereafter.

(2) For members elected from districts 7 through 13, on the first Wednesday in November following the 2036 general election, and every 4 years thereafter.

~~(e)~~(h) An elected official shall take office on the first Wednesday in November following the general election.

Section 2. Amend § 1145, Title 9 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1145. President of the County Council; President pro tempore.

23 (a) (1) At the general election on November 8, 1966, and each fourth year thereafter, thereafter until the first
24 general election following the redistricting that follows the 2030 decennial census under § 1165(a)(3) of this title, a
25 President of the County Council shall be elected at large from New Castle County, except that if such first general election
26 is in a nonpresidential election year, then the President of the County Council thus elected shall serve a term of 2 years and
27 thereafter shall be elected each fourth year in a presidential election year. The President of the County Council shall preside
28 over meetings of the County Council and shall have the same rights and duties including the right to vote and speak therein
29 as other members.

30 (2) Following the 2032 general election, the County Council shall elect by majority vote from among its
31 members a President of the County Council. If the office held by an elected President becomes vacant, the County
32 Council shall elect by majority vote a new President following any special election conducted under § 1147 of this title.

33 (b) Following every general election, the ~~The~~ County Council shall elect by majority vote from among its
34 members a President pro tempore of the county government who shall, during the absence of the President or a vacancy in
35 the office, assume its rights and duties.

36 (c) The President of the County Council shall preside over meetings of the County Council and shall have the
37 same rights and duties including the right to vote and speak therein as other members.

38 Section 3. Amend § 1147, Title 9 of the Delaware Code by making deletions as shown by strike through and
39 insertions as shown by underline as follows:

40 § 1147. Vacancies.

41 (d) ~~(1) President of County Council. — If the Department of Elections for New Castle County receives a writ of~~
42 ~~election reporting the existence of a vacancy in the Office of President of the County Council then, no more than 45 days~~
43 ~~after posting said proclamation pursuant to subsection (c) of this section, it shall hold a special election to fill such vacancy;~~
44 ~~provided, however that:~~

45 a. ~~If the special election to fill the vacancy must be scheduled pursuant to this section within the 45 days~~
46 ~~immediately following another special election, the special election to fill the vacancy shall be held on the forty-~~
47 ~~fifth day following the previous special election; and~~

48 b. ~~If the special election to fill the vacancy must be scheduled pursuant to this section on a Saturday,~~
49 ~~Sunday or legal holiday, said special election shall be held on the first business day thereafter.~~

50 ~~(2) Notwithstanding paragraph (d)(1) of this section:~~

51 a. In the year of a general election, if a vacancy occurs in the Office of President of the County Council
52 on or after June 1 but before August 20 of that year, the special election to fill such vacancy shall be held that year
53 on the day of the general election;

54 b. In the year of a general election in which the Office of President of the County Council is not on the
55 general election ballot, if a vacancy occurs in the Office of President of the County Council on or after August 20
56 of that year but before the date of the general election, the special election to fill such vacancy shall be held that
57 year on the forty-fifth day following the general election, or within 1 week thereafter. [Repealed.]

58 (c) (1) ~~Council Members other than President.~~ — If the Department of Elections for New Castle County
59 Elections-New Castle County Office receives a writ of election reporting the existence of a vacancy on New Castle County
60 Council ~~other than in the Office of President of the County Council~~ then, no more than 30 days after posting said
61 proclamation pursuant to subsection (c) of this section, it shall hold a special election to fill such vacancy; provided,
62 however that:

63 a. If the special election to fill the vacancy must be scheduled pursuant to this section within the 30 days
64 immediately following another special election, the special election to fill the vacancy shall be held on the thirtieth
65 day following the previous special election.

66 b. If the special election to fill the vacancy must be scheduled pursuant to this section on a Saturday,
67 Sunday or legal holiday, said special election shall be held on the first business day thereafter.

68 (2) Notwithstanding paragraph (c)(1) of this section:

69 a. In the year of a general election, if the vacancy occurs on or after July 1 but before August 20 of that
70 year, the special election to fill such vacancy shall be held that year on the day of the general ~~election~~; election.

71 b. In the year of a general election in which the vacated office is not on the general election ballot, if the
72 vacancy occurs on or after August 20 of that year but before the date of the general election, the special election to
73 fill such vacancy shall be held that year on the thirtieth day following the general election, or within 1 week
74 thereafter.

75 Section 4. Amend § 1165, Title 9 of the Delaware Code by making deletions as shown by strike through and
76 insertions as shown by underline as follows:

77 § 1165. Redistricting after each census.

78 (a) It shall be the mandatory duty of the County Council to redistrict New Castle County into council districts after
79 each regular United States decennial census. For the general election in 2002 the County Council shall redistrict the county

into 7 council districts, including 1 district comprising all of New Castle County for the election of the President of the county government.

(3) To accomplish the redistricting commencing with the 2030 decennial census, and each decennial census thereafter, the County Council shall, within 60 days after the official reporting of the census by the President of the United States to Congress, appoint 13 qualified voters of the County who shall comprise a Redistricting Commission. For the redistricting following the 2030 U.S. Decennial census, the members of this Redistricting Commission shall be appointed 1 from each of the 12 council districts of the county and 1 at-large, and shall not be employed by the county in any other capacity. Thereafter, the members of the Redistricting Commission shall be appointed 1 from each of the 13 council districts of the county, and shall not be employed by the county in any other capacity. No more than 7 of the members shall be affiliated with the same political party. Within 90 days after appointment by County Council, the Redistricting Commission shall file with the Clerk of County Council a report containing the recommended plan for adjusting the council district boundaries to establish 13 districts that comply with the following specifications:

a. Each district shall contain contiguous territory.

b. Each district shall contain nearly as possible the same number of inhabitants and no district shall deviate in population more than 15% from the average population for all districts, the average to be obtained by dividing the number 13 into the total population of the county according to the last census.

(d) The County Council shall adopt a redistricting ordinance within 60 days after the report of the Redistricting Commission has been filed with the Clerk of County Council. If a redistricting ordinance has not been adopted by the County Council and approved by the County Executive within 60 days of filing the report by the Redistricting Commission, the redistricting plan as submitted by the Redistricting Commission shall become effective as if it had been adopted by County Council and approved by the County Executive. The redistricting ordinance, if 1 has been adopted by the County Council and approved by the County Executive, or the redistricting plan as submitted by the Redistricting Commission shall then determine the boundaries of ~~districts 1 through 6~~ the councilmanic districts until the next redistricting in accordance with the provisions of this section, the provisions of § 1164 of this title notwithstanding.

Section 5. Amend § 1166, Title 9 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 1166. Election of County Executive and officials of the county governing body.

~~(b) The officials elected to district 13 shall serve a term of 4 years and shall be elected in even-numbered presidential election years.~~ [Repealed.]

109 Section 6. Amend § 334, Title 9 of the Delaware Code by making deletions as shown by strike through and
110 insertions as shown by underline as follows and by redesignating accordingly:

111 § 334. Organization meeting; election of president.

112 (b) After taking the oath of office prescribed by the Constitution, each governing body shall elect 1 of its members
113 to be president. ~~In New Castle County the President of County Council shall be elected by a county wide ballot.~~

114 Section 7. Sections 1, 2, and 4 of this Act take effect immediately upon enactment. Sections 3, 5, and 6 of this Act
115 take effect November 9, 2032.

SYNOPSIS

This Act makes changes to the New Castle County Council. This Act allows the members of the Council to elect a president from among themselves. To do so, this Act increases the number of councilmanic districts from 12 to 13 following the 2030 decennial census, effective with the general election following the redistricting, and removes provisions allowing for the election of a president from the county at-large. This Act also makes changes to the procedures for filling a vacancy on the Council by removing provisions pertaining to holding a special election in the event of a vacancy in the office of the President. This Act gives the Council authority to elect a new president following a special election to fill any vacancy from among its members, and retains the already existing authority to elect a president pro tempore in the event of a vacancy.

This Act also makes technical corrections to existing law to conform to the standards of the Legislative Drafting Manual.